

HEADQUARTERS
U.S. FORCES, EUROPEAN THEATER

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PROHIBITED AND PERMITTED TRANSACTIONS IN THE EUROPEAN THEATER

1. Rescission. Sec III, Cir 67, this headquarters, 18 May and letter, this headquarters, AG 123.7 GAP-AGO, "Prohibition Against Circulating, Importing, Mailing or Exporting United States and Continental Currencies, Including British Currencies in Liberated and Occupied Areas and Transactions Involving All Currencies Except Through Official Channels", 27 Feb 1946, and letter, this headquarters AG 383 GEC-AGO, "Troop Participation in Black Market Trade", 10 Sep 1945, are rescinded.
2. Policy. It is the policy of the Theater Commander that all persons in the theater who are -
 - a. US military personnel,
 - b. Employed by, serving with or accompanying the US forces, or
 - c. Authorized to be present within the theater with the permission and authority of the Theater Commandershall not, insofar as can be avoided, disturb the economy of the occupied territories of Germany or Austria, nor use their presence here in order to obtain or to plan to obtain any commercial or monetary advantage for themselves or for others.
3. Scope. The provisions of this circular are applicable to all transactions in the European Theater, except where they are specifically limited to transactions in the US occupied territories of Germany and Austria. The "Trading With the Enemy Act", 50 USC App, Par 1 et seq, restricts transactions involving German and Austrian nationals, and this circular implements and conforms to that act. AR 600-10, applicable throughout this theater, imposes additional restrictions on transactions by military personnel, and laws of local and national governments concerned may restrict transactions outside the US occupied territories of Germany or Austria. Nothing in this circular exempts personnel under jurisdiction of this headquarters from complying with applicable laws of such governments.
4. Permitted and Prohibited Transactions. The following rules govern commercial transactions and activities in this theater by an individual in his own name or as an agent or on behalf of another;
 - a. Real Property. Real property located in Germany or Austria or located outside Germany or Austria and owned by a German or Austrian national or resident may not be bought, sold, leased or otherwise acquired or transferred.
 - b. Tangible Personal Property. (1) Purchases. Tangible personal property which is not rationed by a local or national government may be purchased in the occupied territories of Germany or Austria from indigenous sources at prevailing legal prices for the personal use of the individual or for use as gifts or souvenirs, provided such purchases are not made for investment, resale or otherwise for profit; items rationed by a local or national government may not be purchased in the occupied territo-